

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Oliver	Team: Squad #13	CCRB Case #: 201804270	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/19/2018 6:00 PM	Location of Incident: 80 Greene Street; 1st Precinct stationhouse	18 Mo. SOL 11/19/2019	Precinct: 01		
Date/Time CV Reported Sat, 05/19/2018 7:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/29/2018 10:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Abraham Caraballo	03921	939972	001 PCT
2. POM Hugh Herbert	01343	930337	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Lo	04425	954073	001 PCT
2. POM Michael Lebloch	23323	952973	001 PCT
3. POM Dennis Burgos	25416	949929	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Hugh Herbert	Abuse: At 80 Greene Street in Manhattan, Police Officer Hugh Herbert threatened to arrest § 87(2)(b)	A . Exonerated
B . POM Hugh Herbert	Discourtesy: At 80 Greene Street in Manhattan, Police Officer Hugh Herbert spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Hugh Herbert	Abuse: At 80 Greene Street in Manhattan, Police Officer Hugh Herbert refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . SGT Abraham Caraballo	Discourtesy: At the 1st Precinct stationhouse, Sergeant Abraham Caraballo spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Abraham Caraballo	Abuse: At the 1st Precinct stationhouse, Sergeant Abraham Caraballo refused to provide his name to § 87(2)(b)	E . Unsubstantiated

Case Summary

On May 19, 2018, § 87(2)(b) called IAB and filed this complaint. On May 29, 2018, the CCRB received the complaint via IAB log #18-19593.

On May 19, 2018, at approximately 6:00 p.m., § 87(2)(b) was shopping at the Yves Saint Laurent store located at 80 Greene Street in Manhattan, where she encountered Police Officer Hugh Herbert, Police Officer Dennis Burgos, Police Officer Michael Lebloch, Police Officer Kevin Lo, and Sergeant Abraham Caraballo, all of the 1st Precinct. PO Herbert allegedly threatened to arrest § 87(2)(b) (**Allegation A – Abuse of Authority;** § 87(2)(g) spoke discourteously to her (**Allegation B - Discourtesy;** § 87(2)(g) and refused to provide his name to § 87(2)(b) (**Allegation C – Abuse of Authority;** § 87(2)(g) After speaking with the officers § 87(2)(b) went to the 1st Precinct stationhouse to file a report for a missing credit card. There, Sgt. Caraballo allegedly spoke discourteously to § 87(2)(b) (**Allegation D - Discourtesy;** § 87(2)(g) and refused to provide his name to § 87(2)(b) (**Allegations E – Abuse of Authority;** § 87(2)(g) No arrest or summons resulted from the incident.

There is no video evidence in this case.

Allegation A – Abuse of Authority: At 80 Greene Street in Manhattan, Police Officer Hugh Herbert threatened to arrest § 87(2)(b)

In her CCRB statement, § 87(2)(b) stated that while inside of the Yves Saint Laurent store, she provided her credit card to a sales associate to make a purchase (BR 01). While the associate was making the sale, § 87(2)(b) looked at the store's sunglasses. The associate returned and said that § 87(2)(b)'s credit card was missing. A manager approached § 87(2)(b) and asked her about a pair of sunglasses she was holding. § 87(2)(b) suggested that the sales associate call the police regarding her missing card. PO Hugh Herbert and PO Dennis Burgos, identified via investigation, arrived and spoke with the sale's associate. § 87(2)(b) could not hear the conversation. Both officers approached § 87(2)(b) who informed them that her card was still missing. PO Herbert said, "Well what do you want us to do? You have to leave." § 87(2)(b) said that she was not going anywhere until she found her credit card. PO Herbert asked § 87(2)(b) if she had ever concealed a pair of the store's the sunglasses in a scarf, which confused her. PO Herbert said § 87(2)(b) needed to leave or he would "lock" her up. § 87(2)(b) asked what she would be "locked up" for. PO Herbert said that she would be arrested because management accused her of attempting to steal a pair of sunglasses. PO Herbert threatened to arrest § 87(2)(b) approximately five times inside of the store. § 87(2)(b) did not interact with PO Burgos.

PO Herbert stated that upon his arrival to the location, the store manager informed him that § 87(2)(b) attempted to remove a pair of sunglasses from the store, and replace them with a pair of her own sunglasses (BR 02). The store manager did not want to press charges against § 87(2)(b) but wanted her out of the store. PO Herbert approached § 87(2)(b) who denied attempting to steal the sunglasses and stated that the store clerk had taken her credit card and not given it back. PO Herbert explained to § 87(2)(b) that the manager wanted her to leave. § 87(2)(b) complied, and did not need to be asked more than once. PO Herbert never threatened to arrest § 87(2)(b) but told her that she could have been arrested for attempting to remove the sunglasses from the store, had the manager wished to press charges.

PO Lo, PO Burgos, and PO Lebloch all denied hearing PO Herbert make the alleged statement or use any profanity during this incident.

Sgt. Caraballo could not recall what statements PO Herbert made to § 87(2)(b) and said that PO Herbert was professional, and never “got in § 87(2)(b) s face.”

§ 87(2)(g)

Allegation C – Abuse of Authority: At 80 Greene Street in Manhattan, Police Officer Hugh Herbert refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that once she exited the location, she approached Sgt. Caraballo for assistance after seeing his gold shield, but he was unhelpful and left shortly after their brief conversation.

§ 87(2)(b) then requested a lieutenant to the location, but PO Herbert refused to contact a supervisor. § 87(2)(b) asked PO Herbert for his name multiple times, but he ignored her. Because PO Herbert refused to provide his name, § 87(2)(b) took a photograph of PO Herbert outside of the store (BR 09).

PO Herbert said that once she exited the store, § 87(2)(b) refused to accept help from any officer present. PO Herbert acknowledged telling § 87(2)(b) that he would not call a Lieutenant to the location, as Sgt. Caraballo was already on scene, and because there were more than enough officers present to assist § 87(2)(b) PO Herbert denied that § 87(2)(b) asked for his name and that he refused to provide his name to § 87(2)(b)

PO Burgos and PO Lebloch could not recall if § 87(2)(b) ever requested any officers’ name. PO Lo denied that § 87(2)(b) did so. PO Burgos, PO Lo, and PO Lebloch all denied witnessing PO Herbert refuse to provide his name to § 87(2)(b) upon request.

§ 87(2)(g)

Allegation D – Discourtesy: At the 1st Precinct stationhouse, Sergeant Abraham Caraballo spoke discourteously to § 87(2)(b)

Allegation E – Abuse of Authority: At the 1st Precinct stationhouse, Sergeant Abraham Caraballo refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that after Sgt. Caraballo left the incident location, she went to the 1st Precinct stationhouse to file a report about her missing credit card. There, she encountered Sgt. Caraballo in the hallway near the exit. As she walked passed, Sgt. Caraballo called § 87(2)(b) an “asshole.” § 87(2)(b) asked Sgt. Caraballo if he was speaking to her, and he responded, “Yeah. You’re a fucking asshole. Get the fuck out of here.” § 87(2)(b) had not spoken to Sgt. Caraballo before he made these statements. She asked Sgt. Caraballo for his name, and he ignored her. She

requested his name a second time, and when he did not respond, she took a photo of him on her phone and left the stationhouse (BR 10).

Sgt. Caraballo stated that upon returning to the stationhouse, he was on the phone with his commanding officer. § 87(2)(b) approached and began screaming at him. He could not recall the statements she made, but denied calling § 87(2)(b) an “asshole.” He did not recall making the statement, “You’re a fucking asshole, get the fuck out of here.” § 87(2)(b) asked Sgt. Caraballo for his name, and he immediately presented his shield and name plate to § 87(2)(b) by pushing it towards her with his hand. He did not recall if § 87(2)(b) wrote his information down, but believed she took a photo or video of him at that time to document his information.

PO Burgos, PO Herbert, PO Lo, and PO Lebloch did not witness this aspect of the incident.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 11).
- PO Herbert has been a member of service for 16 years and has been a subject in 15 complaints and 40 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Abraham Caraballo has been a member of service for 13 years and has been a subject in three complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- On April 29, 2019, a Notice of Claim inquiry was submitted. Its results will be added to the case file upon receipt (BR 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date